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ESTTA Tracking number: **ESTTA113804**

Filing date: **12/08/2006**

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

# Notice of Opposition

Notice is hereby given that the following party opposes registration of the indicated application.

## Opposer Information

| | | | |
|---|---|---|---|
| Name | Vitamin World, Inc | | |
| Entity | Corporation | Citizenship | Delaware |
| Address | 90 Orville Drive<br>Bohemia, NY 11716<br>UNITED STATES | | |

| | |
|---|---|
| Attorney information | Scott B Fisher<br>Jaspan Schlesinger Hoffman LLP<br>300 Garden City Plaza<br>Garden City, NY 11530<br>UNITED STATES<br>lhechtel@jshllp.com, sfisher@jshllp.com, khirasawa@jshllp.com Phone:516 746 8000 |

## Applicant Information

| | | | |
|---|---|---|---|
| Application No | 78854326 | Publication date | 11/21/2006 |
| Opposition Filing Date | 12/08/2006 | Opposition Period Ends | 12/21/2006 |
| Applicant | First Quality Hygienic, Inc.<br>Suite 500 80 Cuttermill Road<br>Great Neck, NY 11021<br>UNITED STATES | | |

## Goods/Services Affected by Opposition

| |
|---|
| Class 005.<br>All goods and sevices in the class are opposed, namely: Feminine hygiene products, namely tampons and feminine cleansing cloth |

## Applicant Information

| | | | |
|---|---|---|---|
| Application No | 78704010 | Publication date | 11/14/2006 |
| Opposition Filing Date | 12/08/2006 | Opposition Period Ends | 12/14/2006 |
| Applicant | First Quality Hygienic, Inc.<br>Suite 500 80 Cuttermill Road<br>Great Neck, NY 11021<br>UNITED STATES | | |

## Goods/Services Affected by Opposition

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|---|
| Class 005.<br>All goods and sevices in the class are opposed, namely: Sanitary products, namely, feminine hygiene cleansing cloths. |

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| Attachments | DOCSOPEN-#524480-v1-notice_of_opposition.pdf ( 5 pages )(15300 bytes )<br>Femgest.pdf ( 2 pages )(92133 bytes ) |

| | |
|---|---|
| Signature | /scott b fisher/ |
| Name | Scott B Fisher |
| Date | 12/08/2006 |

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

In the Matter of Trademark Application

| | | |
|---|---|---|
| Applicant | : | First Quality Hygienic, Inc. |
| Serial No. | : | 78/854,326 |
| Filed | : | April 5, 2006 |
| Mark | : | FEMTEX CROWN JEWEL |
| Int'l Class | : | 5 |
| For | : | Feminine hygiene products, namely tampons and feminine cleansing cloth |
| Published | : | November 21, 2006 |

| | | |
|---|---|---|
| Vitamin World, Inc., | : | |
| | : | |
| Opposer, | : | |
| | : | |
| vs. | : | Opposition No.:_____ |
| | : | |
| First Quality Hygienic, Inc., | : | |
| | : | |
| Applicant. | : | |
| | : | |

Commissioner for Trademarks
P.O. Box 1451
Alexandria, Virginia 22313-1451

## NOTICE OF OPPOSITION

Opposer, Vitamin World, Inc. (the "Opposer" or "Vitamin World"), is a Delaware corporation with a principal place of business at 90 Orville Drive, Bohemia, New York 11716.

Vitamin World believes that it will be damaged by the registration of FEMTEX CROWN JEWEL covering "Feminine hygiene products, namely tampons and feminine

cleansing cloth" in International Class 5 (the "FEMTEX CROWN JEWEL Mark" or the "Applicant's Mark"), by applicant, First Quality Hygienic, Inc. ("Applicant" or "First Quality Hygienic"), a Pennsylvania corporation having a principal place of business at 80 Cuttermill Road, Suite 500, Great Neck, New York 11021, and hereby opposes the same.

As grounds in support for this opposition, Opposer alleges the following:

1. Opposer, by duly recorded assignment, is the owner of all right, title and interest in United States Trademark Registration No. 2,438,301, registered March 27, 2001, on the Principal Register for the trademark FEMGEST ("FEMGEST Mark"), covering the following goods:

> "Medicated topical transdermal creams for application to irritated or itchy skin" in International Class 05.

Affidavits under Sections 8 and 15 of the Trademark Act (15 U.S.C. § 1065) were filed, accepted and acknowledged by the Trademark Office. Therefore, Opposer's right to use the FEMGEST Mark on said goods is incontestable. (See Exhibit "A").

2. Opposer manufactures and markets in the United States, and beyond, medicated topical transdermal creams for application to irritated or itchy skin and other goods and products under its well-known FEMGEST Mark.

3. Opposer has been actively expanding its use of its FEMGEST Mark. Through such extensive and continuous use, Opposer has acquired significant and valuable interest in the FEMGEST Mark. This interest will be injured by Applicant's use of the FEMTEX CROWN JEWEL Mark, which is substantially similar to Opposer's valuable FEMGEST Mark and confusingly similar in appearance, sound, connotation,

and commercial impression to Opposer's valuable FEMGEST Mark.

4. Opposer has continuously used its distinctive FEMGEST Mark since at least as early as February 1997, which is approximately 9 years before the Applicant filed its intent to use application for the proposed FEMTEX CROWN JEWEL Mark.

5. Opposer has been actively using the FEMGEST Mark. Through such extensive and continuous use, Opposer has acquired significant and valuable interest in the FEMGEST Mark and the goods offered thereunder. These interests will be injured by Applicant's use of the FEMTEX CROWN JEWEL Mark, which is confusingly, substantially similar in appearance, sound, connotation, and commercial impression to Opposer's valuable FEMGEST Mark.

6. Opposer has expended considerable time, money and effort in advertising and promoting the FEMGEST Mark, its products sold under the mark, and in developing substantial and exclusive goodwill and reputation in connection with FEMGEST, and the goods and products with which the FEMGEST Mark is used.

7. As a result of these expenditures, combined with substantial sales of quality goods under the FEMGEST Mark, the relevant consuming public has come to recognize FEMGEST as favorably distinguishing Opposer's goods from those of others.

8. Opposer has clear priority with respect to the use and registration of FEMGEST, or any mark confusingly similar thereto, in connection with medicated topical transdermal creams for application to irritated or itchy skin, and other similar feminine hygiene related goods.

9. The dominant portion of Applicant's FEMTEX CROWN JEWEL Mark is confusingly similar in appearance, sound, spelling, connotation and commercial

impression to the dominant portion of Opposer's FEMGEST Mark.

10. Applicant seeks to register a mark that is confusingly similar to Opposer's FEMGEST Mark, and will be used in connection with goods which are substantially similar to those goods sold under the FEMGEST Mark.

11. Applicant's goods that are or may be sold under its FEMTEX CROWN JEWEL Mark are or will be offered through the same or similar channels of trade and to the same or similar class of consumers as Opposer's goods.

12. Applicant's use and registration of the FEMTEX CROWN JEWEL Mark will cause Opposer injury because such use is likely to cause confusion or mistake, or both, by wrongly leading consumers to believe that Opposer provides, or somehow is associated with Applicant's goods, products and services.

13. These consumers, upon purchasing, using or otherwise receiving Applicant's goods, products and services bearing the FEMTEX CROWN JEWEL Mark are likely to be confused and deceived, and are likely to believe in the existence of some association between the Applicant or Applicant's goods and Opposer, all to the injury of Opposer's FEMGEST Mark.

14. Applicant's use and registration of the FEMTEX CROWN JEWEL Mark will dilute the distinctive quality of and diminish or detract from the prior rights firmly established by Opposer in and to the FEMGEST Mark.

15. Please charge any additional fees to Deposit Account No. 501,844 and direct all correspondence in connection with this opposition to the undersigned.

WHEREFORE, refusal of the registration applied for by Application Serial No. 78/854,326 is respectfully submitted to be in order and is hereby requested.

Dated: December 4, 2006
Garden City, New York

Respectfully submitted,

Vitamin World, Inc.

By: _____

Scott B. Fisher
Lee Grosskreuz Hechtel
Jaspan Schlesinger Hoffman LLP
300 Garden City Plaza
Garden City, New York 11530
Tel. (516) 746-8000
Fax (516) 393-8282

Attorneys for Opposer
Vitamin World, Inc.

D#524480/M39155



United States Patent and Trademark Office



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## Typed Drawing

| | |
|---|---|
| **Word Mark** | **FEMGEST** |
| **Goods and Services** | IC 005. US 006 018 044 046 051 052. G & S: MEDICATED TOPICAL TRANSDERMAL CREAMS FOR APPLICATION TO IRRITATED OR ITCHY SKIN. FIRST USE: 19970215. FIRST USE IN COMMERCE: 19970215 |
| **Mark Drawing Code** | (1) TYPED DRAWING |
| **Design Search Code** | |
| **Serial Number** | 75869994 |
| **Filing Date** | December 13, 1999 |
| **Current Filing Basis** | 1A |
| **Original Filing Basis** | 1A |
| **Published for Opposition** | January 2, 2001 |
| **Registration Number** | 2438301 |
| **Registration Date** | March 27, 2001 |
| **Owner** | (REGISTRANT) BIO-NUTRITIONAL FORMULAS, INC. CORPORATION NEW YORK 106 East Jericho Turnpike Mineola NEW YORK 11501<br><br>(LAST LISTED OWNER) VITAMIN WORLD, INC. CORPORATION DELAWARE 90 ORVILLE DRIVE BOHEMIA NEW YORK 11716 |
| **Assignment Recorded** | ASSIGNMENT RECORDED |
| **Attorney of Record** | Lee Grosskreuz Hechtel |
| **Type of Mark** | TRADEMARK |
| **Register** | PRINCIPAL |
| **Affidavit Text** | SECT 15. SECT 8 (6-YR). |
| **Live/Dead** | |

**Indicator** LIVE